

14. 9:00 AM CASE NUMBER: C25-03757

CASE NAME: CATHAY BANK, VS. CHRISTINA SEELYE

HEARING IN RE: APPLICATION FOR RIGHT TO ATTACH ORDER, ISSUANCE OF WRIT AFTER HEARING AS TO CHRISTINA SEELYE

FILED BY: CATHAY BANK,

TENTATIVE RULING:

The hearing is **continued** to May 27, 2026, the earliest available date on the Court's calendar, because the Bank's reply, due two court days before the hearing under CCP § 484.060(c), was not received in time for the Court's review.

15. 9:00 AM CASE NUMBER: MS5031

CASE NAME: PETITION OF: PARAQUAT CASES

HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO ROBERT KEITH MORGAN

FILED BY: PARAQUAT CASES

TENTATIVE RULING:

Summary

On November 17, 2025, Plaintiff William DeHaven filed a Notice of Hearing through Counsel, The Miller Firm, LLC, to this Court for an order granting this Verified Application of Robert Keith Morgan for Admission *Pro Hac Vice* as Counsel for Plaintiff. The Motion is **granted**. No appearance is required at the hearing on May 13, 2026.

Background

On November 17, 2025, Plaintiff William DeHaven filed a Notice of Hearing through Counsel, The Miller Firm, LLC, to this Court for an order granting this Verified Application of Robert Keith Morgan for Admission *Pro Hac Vice* as Counsel for Plaintiff ("Motion"). The Motion was supported by the Verified Application of Robert Keith Morgan, and the Declaration of Counsel Curtis G. Hoke. The proof of service form indicates that service of this Motion was accomplished to the service list on November 17, 2025. The Court did not receive timely oppositions to this Motion.

Analysis

California Rules of Court (CRC) Rule 9.40 allows this Court to grant a written application for leave to appear as Counsel *Pro Hac Vice* to an applicant who is not a member of the State Bar of California, but who is admitted into and is in good standing with the highest court of any other state.

Upon review, the Court finds that the verified application of Robert Keith Morgan. declares facts under penalty of perjury to support the application under CRC Rule 9.40. Mr. Morgan is an attorney licensed to practice in the State of Mississippi, the State of West Virginia, and the District of Columbia, and is a resident of the State of Mississippi. He is employed by the Miller Firm, LLC. He is not a member of the California State Bar, nor is he a resident of the State of California, nor does he have

regular employment or substantial business in California. He represented to the Court that he not been suspended, disbarred or resigned as counsel. No court has denied his application to be admitted *Pro Hac Vice*. Again, no timely opposition was filed with the Court.

After considering the moving papers, and applying the relevant law, the Court makes the following findings and orders. The Court finds good cause to admit Mr. Morgan pro hac vice to practice before the Courts of the State of California for this action.

Ruling

Defendant's motion is **granted**. Robert Keith Morgan, Esq, is admitted to appear as Counsel *Pro Hac Vice* for the duration of this case. The Court will execute the proposed order lodged with the Court on November 17, 2025, with a copy of this ruling attached thereto. No appearance is required on May 13, 2026.

16. 9:00 AM CASE NUMBER: MSC21-02445

CASE NAME: NIST VS FARRELL

***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: CLIFFORD R. HORNER, ESQ.**

FILED BY: FARRELL, SHANNA M.

TENTATIVE RULING:

Summary

Attorneys Clifford Horner and Paymon Hifai of the Horner Law Group ("HLG") Motion to be Relieved as Counsel of Record for Defendant and Cross-Complainant Shanna Farrell is tentatively **granted**. Messrs. Horner or Paymon and Defendant and Cross-Complainant Shanna Farrell ("Farrell") are ordered to appear at the hearing on May 13, 2026.

Background

As background, the Plaintiffs filed this property dispute action on November 24, 2021 against their neighbors in rural multiple acre ranch in Clayton, California, alleging various causes of action. To date, there are nearly 400 pleadings and documents on file in this case, including multiple demurrers, motions to strike, discovery motions, *ex parte* applications, motions for reconsideration, a motion to declare Farrell as a vexatious litigant, a motion to expunge *lis pendens*, motions for sanctions, a motion to vacate a default judgment, an earlier motion of Farrell's prior counsel to withdraw as counsel of record, and a motion for preliminary injunction. The operative pleading is the Fourth Amended Complaint. In this Court's assessment, to describe this case as one that has been vigorously litigated is a substantial understatement.

Trial is set for September 14, 2026. The case is approaching critical pretrial deadlines, including the Issue Conference set for August 6, 2026, and related statutory and discovery deadlines leading into trial. The five year statute expires on November 24, 2026, after which this Court loses jurisdiction over this case and must dismiss this action pursuant to Cal. Code of Civ. Proc §§ 583.310 and 583.360. There are no stipulations to continue the trial date, no tolling agreements and no statutory cause to extend this five year restriction.